

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 18, 2026
8:30 a.m./1:30 p.m.

18. MELANIE SCHWARTZLER V. ROBERT CLINTON

PFL20170631

On January 16, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. Petitioner was personally served on January 22, 2026, as is required by Family Code § 215.

Petitioner has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Petitioner. She had notice of the pending requests and chose not to file an opposition. As such, the court finds good cause to treat her failure to do so as an admission that the claims made in the RFO are meritorious.

Respondent is requesting sole legal and sole physical custody of the children. He asks that Petitioner have visitation on the second and fourth Sunday of each month from 9:00am to 5:00pm.

Both parties and their counsel appeared for the hearing on April 9, 2026. The court stayed its tentative ruling and rereferred the parties to Child Custody Recommending Counseling (CCRC) with an appointment on April 20, 2026, and a further review hearing on June 18, 2026. The court reserved on the requests for attorney’s fees and sanctions.

Both parties and the minors participated in the CCRC appointment. The parties were able to reach many agreements which are memorialized in the April 24, 2026 CCRC report along with further recommendations.

Respondent filed a Supplemental Declaration on June 8, 2026. It was electronically served on June 8th. Respondent outlines the ongoing exchange issues that have occurred since the last court hearing.

Petitioner has not filed a Supplemental Declaration.

The court has read and considered the filings as outlined above. The court finds the agreements and recommendations as set forth in the April 24th CCRC report to be in the best interest of the minors. The court adopts the agreements and recommendations as set forth. The parties are to share in the costs of co-parenting counseling equally. If Petitioner is more than 15 minutes late to pick the minors up, and has not made contact with Respondent, Petitioner’s visit shall be forfeited.

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All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #18: THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS AS SET FORTH IN THE APRIL 24TH CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINORS. THE COURT ADOPTS THE AGREEMENTS AND RECOMMENDATIONS AS SET FORTH. THE PARTIES ARE TO SHARE IN THE COSTS OF CO-PARENTING COUNSELING EQUALLY. IF PETITIONER IS MORE THAN 15 MINUTES LATE TO PICK THE MINORS UP, AND HAS NOT MADE CONTACT WITH RESPONDENT, PETITIONER'S VISIT SHALL BE FORFEITED. ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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19. JUSTIN SIMARRO V. YAJAIRA SIMARRO

PFL20200099

On November 6, 2025, Respondent filed a Request for Order (RFO) seeking an order for Petitioner to pay credit card debts.

On November 17th, Respondent filed an Order to Show Cause and Affidavit for Contempt (OSC).

Respondent filed another RFO on January 16, 2026.

On February 13, 2026, Respondent filed a Proof of Service indicating service of an “FL300, ex parte” and an “FL300.” There are currently three RFOs pending before the court and the Proof of Service does not specify which one was served. Additionally, the Notice of Tentative Ruling was not served, nor was a blank Responsive Declaration to Request for Order. Without a properly completed Proof of Service the matter cannot be heard

According to the Proof of Service, the “FL410” was personally served on Petitioner.

Parties appeared for the hearing on February 26, 2026. The court arraigned Petitioner on the OSC. Petitioner requested additional time to hire counsel. The court continued the OSC for further arraignment to April 23, 2026 at 1:30 PM.

The court continued the November 6, 2025, RFO to allow Respondent time to file a corrected Proof of Service.

Respondent filed Proof of Service on April 1, 2026 showing Respondent was personally served with all the required documents.

On April 23, 2026, the court appointed the office of the Public Defender to Petitioner and continued the arraignment.

Parties are ordered to appear on the RFO.

TENTATIVE RULING #19: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.